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Board Wins Ruling Affirming Power to Appoint Heads of Departments (The Sun, 23 March 1951, p. 1)

[The Sun, Arlington, Virginia, Friday, 23 March 1951, p. 1. Only the article headed "Board Wins Ruling" is reproduced, as Virginia Chronicle's text layer gives it, with plain OCR slips corrected (for example "thtsf" for "this"); the rest of the page is not reproduced.]

Board Wins Ruling Affirming Power to Appoint Heads of Departments

Consideration is being given to establishment of a department of public safety, or a department of law enforcement, which would include the police department as one of its divisions, Mrs. Florence Cannon, County Board chairman, told The Sun after Judge Walter T. McCarthy ruled Tuesday that appointment of Arlington department heads rests with the County Board.

Judge McCarthy acted on the petition for a declaratory judgment filed by Commonwealth's Attorney Denman T. Hucker after the Board, by resolution in January, reclaimed the appointive power from the manager. The Board was represented by Malcolm D. Miller and Benjamin M. Hedrick.

Tuesday's hearing lasted about an hour and a half. The argument centered around interpretation of a section in the Arlington manager law dealing with the powers of the county manager and the functions of the Board. The opposing attorneys had agreed that appointment of a police chief was not at issue, since a special legislative act gives this appointment to the manager. Judge McCarthy did not rule on that question in view of the agreement.

After establishment of the county manager system here and until 1937, the Board appointed the department heads. In 1937 it delegated that authority to the county manager. The Board had no right to relinquish its power in 1937, Judge McCarthy said in his ruling, declaring a change in procedure could be accomplished only through an amendment to the county manager act.

Mrs. Cannon said the Board's advisory committee on county government organization and procedure is studying various theories regarding law enforcement, and will make a

recommendation to the Board.

Mr. Hedrick in his presentation to the Court held that one department can serve within another, and followed this with a statement that the county manager could still appoint the police force and chief of police, who would in turn serve in a department headed by an appointee of the County Board.

Mrs. Cannon told The Sun two plans are under consideration. One would create a law enforcement department which would include the police, counsel to the Board, coroner and related officers. A department of public service is another approach, she said, comprising the police force and fire fighting division.